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#	Case Name	Tentative
1.	<i>Pasche vs. Ox Car Care, Inc.</i> 2026-01548650	Before the court is the petition by petitioner John Pasche (Petitioner) to confirm the arbitration award issued on February 4, 2026, in the amount of \$47,500 against respondent Ox Car Care, Inc. dba Ox Warranty Group (Respondent). As more fully set forth below, the hearing on the petition is CONTINUED TO JULY 9, 2026, AT 2:00 P.M. IN DEPARTMENT C23. Code of Civil Procedure Section 1290.4 provides, in pertinent part, as follows: "(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice. [¶] (b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: [¶] (1) Service within this State shall be made in the manner provided by law for the service of summons in an action. . . ." There is no evidence showing the parties' agreement provided the manner for service of a petition to confirm an arbitration award. As such, we turn to Code of Civil Procedure Section 413.10, et. seq., which sets forth the procedure for service of a summons. Here, the proof of

		service attached to the petition shows the petition was served by email which does not comply with the requirements of section 413.10, et. seq. Service of summons by email is permissible only when authorized by a court order and there is no such order in this case. Furthermore, there is no proof of service showing notice of this hearing was served on Respondent by any means. Based on the foregoing, the hearing on the petition is CONTINUED as set forth above to allow for proper service. Petitioner's counsel is ordered to give notice of this ruling.
2.	<i>DeJesse vs. Rivera</i> <i>2025-01506697</i>	Before the court is the unopposed petition and motion to confirm arbitration award filed by petitioner Jeffrey DeJesse (Petitioner). As more fully set forth below, the motion is GRANTED. Petitioner's motion meets the requirements of Code of Civil Procedure sections 1285 and 1258.4. The petition attaches a copy of the parties' arbitration agreement, identifies the arbitrator, and attaches a copy of the arbitrator's final award, which awarded Petitioner the sum total of \$81,925.00 in attorney fees and costs, comprised of \$75,300.00 in attorney fees, and \$6,625.00 in costs against respondents Reynaldo Rivera and MRV Marketing, LLC (collectively, Respondents). (DiMercurio Decl. ¶¶ 8-10, Ex. B.) As the Motion complies with the requirements and has been duly served and filed, the court must confirm the award as made unless Respondents identify and establish a basis to vacate or correct the award. (Code Civ. Proc., § 1286.) Respondents filed no opposition to the petition or motion and did not move to correct or vacate the award. In fact, default has been entered in these proceedings against Respondents due to their failure to respond. By not responding to the petition and motion, Respondents are deemed to have admitted all the allegations of the petition and motion. (Code Civ Proc., § 1290.) Petitioner also requests post-award, prejudgment interest, which is permissible pursuant to Civil Code section 3287, subdivision (a). (<i>Pierotti v. Torian</i> (2000) 81 Cal.App.4th 17, 27.) The prejudgment interest on the \$75,300 award from the date of entry on June 3, 2025, through to the date of this motion hearing totals \$8,596.51. Based on the foregoing, the motion is GRANTED, the arbitration award is confirmed, and judgment shall be entered in favor of Petitioner and against Respondent in the